

25STCV26668 25STCV26668

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Case Number: 25STCV26668 Hearing Date: July 9, 2026 Dept: 731

[TENTATIVE] ORDER DENYING MOTION TO COMPEL
ARBITRATION

Evidentiary

Objections to the Declaration of Megan McCay: Sustained.

Evidentiary

Objections to the Declaration of Jessica Garcia: Overruled.

On

December 18, 2023, Plaintiff Maria Pina leased a 2024 Jeep Wrangler 4xe.

Plaintiff alleges the vehicle suffers from a known defect in the plug in

“hybrid propulsion system” which can constitute a fire hazard, due to the use of lithium-ion batteries. On September 11, 2025, and October 13, 2025, Plaintiff filed a 203 and 202 paragraph complaint and first amended complaint for Breach of Implied Warranty of Merchantability, Breach of Express Warranty, Fraudulent Concealment, and Violation of the Consumer Legal Remedies Act. Plaintiff seeks both damages and injunctive relief. On November 14, 2025, Defendant answered the first amended complaint.

Different counsel

for Defendant now moves for arbitration of the first amended complaint. Defendant moves for arbitration under a position that the Federal Arbitration Act precludes any California Arbitration Act laws, and the plain language of the arbitration agreement compels arbitration. Defendant denies any procedural or substantive unconscionability. [Declaration of Jessica Garcia, ¶¶ 3, Ex. A-B.]

Plaintiff in

opposition challenges the authenticity of the documents, and contends Defendant waived its right to seek arbitration upon participating in discovery exchanges pursuant to Code of Civil Procedure section 871. Plaintiff cites to a case in Riverside County on the premise of “collateral estoppel” based on a similar tactic engaged in by Defendant and rejected by the trial court. [Declaration of Logan Pascal, Ex. 4: Notice of Ruling.] Finally, Plaintiff also contends the arbitration clause is procedurally and substantively unconscionable.

No reply appears
on file.

Defendant
establishes the existence of the arbitration clause. The clause states in relevant part: “YOU AGREE THAT ANY AND ALL CLAIMS WILL BE RESOLVED BY INDIVIDUAL ARBITRATION AND NOT IN COURT IF YOU OR LESSOR REQUESTS ARBITRATION. YOU HEREBY ACKNOWLEDGE THAT YOU ARE WAIVING YOUR RIGHT TO PROCEED IN COURT, AND TO JURY TRIAL. ADDITIONALLY, YOU WAIVE ALL RIGHTS TO PROCEED IN A CLASS ACTION OR CLASS ARBITRATION. Any controversy or claim between or among you and Lessor, including but not limited to those arising out of or relating to the Vehicle, this Lease or any related agreement or any claim based on or arising from an alleged tort, shall at the request of either party be determined by individual arbitration...”

Plaintiff offers
no challenge as to FAA preemption or any other standards under California law regarding Song-Beverly Act arbitration. Plaintiff also lacks any apparent position regarding enforcement of arbitration agreements by non-signatory manufacturers. The court declines to consider any unmade positions. (*Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”].)

The court finds
the agreement authenticated and therefore considers its terms. (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758.) While Plaintiff waived any positions regarding the parties to the contract, the court considers the position regarding Defendant's alleged waiver due to its participation in discovery exchanges under Code of Civil Procedure section 871.

Waiver

“Although a court may deny a petition to compel arbitration on the ground of waiver (§ 1281.2, subd. (a)), waivers are not to be lightly inferred and the party seeking to establish a waiver bears a heavy burden of proof. (Citations.) [¶] Both state and federal law emphasize that no single test delineates the nature of the conduct that will constitute a waiver of arbitration. (Citations.) “In the past, California courts have found a waiver of the right to demand arbitration in a variety of contexts, ranging from situations in which the party seeking to compel arbitration has previously taken steps inconsistent with an intent to invoke arbitration [citations] to instances in which the petitioning party has unreasonably delayed in undertaking the procedure. [Citations.] The decisions likewise hold that the ‘bad faith’ or ‘wilful misconduct’ of a party may constitute a waiver and thus justify a refusal to compel arbitration. [Citations.]” (St. Agnes Medical Center v. PacifiCare of California (2003) 31 Cal.4th 1187, 1195–1196.)

Waiver generally occurs upon a finding of prejudice against the challenging party. Examples include the propounding discovery or service of an answer, where such action reveals the strategies or theories that would not otherwise be available to the party in arbitration. (Berman v. Health Net (2000) 80 Cal. App. 4th 1359, 1367; Davis v. Continental Airlines, Inc. (1997) 59 Cal. App. 4th 205, 212.) Where an agreement lacks a specific time frame, an excessive and unreasonable delay in a demand for arbitration can support a finding of a waiver. (Spear v. California State Auto. Assn. (1992) 2 Cal.4th 1035, 1043; Allstate Ins. Co. v. Gonzalez (1995) 38 Cal.App.4th 783, 790.) “[W]hat constitutes a reasonable time is a question of fact, depending on the situation of the parties, the nature of the transaction, and the facts of the particular case.’ Among the facts a court may consider is any prejudice the opposing party suffered because of the delay. [Citation.]” (Spear v. California State Auto. Assn. supra, 2 Cal.4th at 1043.) The determination of diligence applicable to an arbitration motion commences upon the filing of the action. (Allstate Ins. Co. v. Gonzalez, supra, 38 Cal.App.4th at 790; Schumpert v. Tishman Co. (1988) 198 Cal.App.3d 598, 603.)

On September 11, 2025, and October 13, 2025, Plaintiff filed the complaint and first amended complaint. Defendant answered on November 14, 2025. The answer lacks any demand

for arbitration. On April 20, 2026, more than six months from the filing of the first amended complaint, and more than five months from the answer, new counsel for Defendant filed the instant motion to compel arbitration.

Meanwhile, on

December 4, 2025, Plaintiff served initial disclosures, document production, and notice for the deposition of the PMQ/PMK for December 16, 2025.

[Declaration of Logan Pascal, ¶¶ 4-5, Ex. 1.] On January 13, 2026, Defendant complied with its obligations for document disclosure under Code of Civil Procedure section 871.26. [Id., ¶¶ 6-7, Ex. 3.]

The lack of any

notice of a potential reservation of right to seek arbitration, participation in statutory discovery, and five month plus delay on the motion demonstrates unreasonable delay and conduct inconsistent with an intent to seek arbitration. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th

436, 446; *Adolph v. Coastal Auto Sales, Inc.* (2010) 184 Cal.App.4th

1443, 1451; *Kaneko Ford Design v. Citipark, Inc.* (1988) 202 Cal.App.3d 1220, 1228.) While it remains unstated as to

whether the statutory discovery prejudiced Plaintiff in that Plaintiff in no way maintains production of information includes more information than produced in arbitration, the course and conduct of Defendant still indicates an intent to litigate rather than seek arbitration. The collective conduct of Defendant supports the finding of a waiver of the right to seek arbitration.

Collateral Estoppel

"In general, collateral estoppel

precludes a party from relitigating issues litigated and decided in a prior proceeding. (Citations.) 'Traditionally,

we have applied the doctrine only if several threshold requirements are fulfilled. First, the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding. Second, this issue must have been actually litigated in the former proceeding. Third, it must have been necessarily decided in the former proceeding. Fourth, the decision in the former proceeding must be final and on the merits. Finally, the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. (Citation.)'" (*Gikas v. Zolin* (1993) 6 Cal.4th 841, 848–849.)

Even assuming the court takes

judicial notice of the notice of entry of order regarding the Riverside County trial court, Plaintiff lacks any showing that the subject issues in the Riverside County court are in privity with the instant action. A legally similar challenge will not constitute the basis for a collateral estoppel challenge. (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 896-897; Slater v. Blackwood (1975) 15 Cal.3d 791, 795 ["A valid final judgment on the merits in favor of a defendant serves as a complete bar to further litigation on the same cause of action"].)

Conclusion

The motion to compel arbitration is denied on grounds of waiver.

Defendant is ordered to give notice.

Parties who

intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org.

If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar.

If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If any party does not submit on the tentative, the party should make arrangements to appear remotely at the hearing on this matter.